

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

WP No. 624 of 2024

Abdul Qayyum Khan Jatoi
vs
Election Commission of Pakistan etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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19.01.2024	Ms. Farah Sharif Khosa, Advocate for petitioner. Malik Muhammad Bakhsh Khakhi, AAG. Mr. Muzaffar Hussain, Law Officer on behalf of Election Commission of Pakistan. Mr. Mukarram Sultan, Returning Officer, Muzaffargarh-IV, Aleem Raza, R.O. P.C. 273 and Malik Mehboob Alam, R.O PP-272.
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This consolidated order shall decide instant petition alongwith WP Nos.625 and 626 of 2024 as similar issue in all these petitions is involved.

2. Petitioner Abdul Qayyum Khan Jatoi candidate for NA-178, Muzaffargarh-IV seeks symbol of dove instead of symbol of feather allocated to him. Muhammad Dawood Khan (petitioner in WP No. 625 of 2024), candidate for P.P. 273, Muzaffargarh-VI seeks symbol of hukkah instead of symbol of bowl allocated to him whereas Rana Abdul Mannan Sajid (petitioner in WP No.626 of 2024) candidates for PP-272 Muzaffargarh-V seeks symbol of hukkah instead of symbol of bottle allocated to him. Claim of the afore referred petitioners is that they filed applications within time for allocation of the afore referred symbols, however, Returning Officers without acceding to their request have allocated afore referred other symbols to them which is against the provisions of Section 67 of the Election Act, 2017 (“Act”).

3. On 18.01.2024 notices were issued in these petitions and today learned Law Officer of Election Commission of Pakistan and respective Returning Officers of the afore referred constituencies have appeared. All of them have categorically denied the assertions of counsel for petitioners that any application was filed by petitioners for specifically issuance of symbols presently sought by them through these petitions. Learned AAG also points out that earlier present petitioners had respectively filed WP Nos. 358, 359 and 374 of 2024 wherein vide order dated 16.01.2024 matter was referred by this Court to Regional Election Commissioner, D.G. Khan for redress of their grievance if an application was filed in accordance with law, rules and policy after affording opportunity of hearing to all the stakeholders expeditiously. Further submits that vide order dated 18.01.2024 passed by Regional Election Commissioner concerned, relief has been declined to the petitioners by mentioning that application for afore referred symbols was not filed by petitioners by 13.01.2024 which was the last date for issuance of symbols and the said order has not been further challenged by the petitioners through any petition before this Court, consequently, these petitions solely seeking a direction for issuance of afore referred symbols without challenging the said order are not maintainable.

4. **Heard.** Record perused.

5. Perusal of record shows that last date for issuance of symbols was 13.01.2024 on or before which date request for specific symbols could be made. Applications for allocation of symbols stated to have been filed by the petitioners bear dates 13.12.2024 and 14.12.2024 in the cases of petitioners Muhammad Dawood Khan and Rana Abdul Mannan Sajid whereas in case of petitioner Abdul Qayyum Khan Jatoi, the same do not bear any date and further there is no receiving by

the ROs concerned available with the petitioners to show that such applications were filed within time. Even it may be assumed that dates have wrongly been mentioned as is apparent from applications that said dates have still not arrived and have mistakenly been mentioned in the applications, receipt of any request by petitioners of afore referred symbols within time is not forthcoming on the record and it is disputed fact whether request was made within time in terms of Section 67 of the Act or not which disputed fact cannot be determined in constitutional jurisdiction of this Court. Consequently, the petitioners have failed to make out a ground for this Court to exercise its constitutional jurisdiction for directing the returning officer to allot symbols sought by the candidates for the purpose of contesting election, more so for the reason that the orders, refusing relief to the petitioners passed by Regional Election Commissioner, D.G. Khan on the representation of the petitioners, have not been called in question. Hence, no interference is called for.

6. For what has been discussed above, all these three petitions stand ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *